

SOLAR LEASE AND EASEMENT AGREEMENT

Nowata County, State of Oklahoma

THIS SOLAR LEASE AND EASEMENT AGREEMENT (this “**Agreement**”) is made, dated and effective as of November 14, 2018 (the “**Effective Date**”), by and between **Green Bandit, LLC, an Oklahoma limited liability company** (together with its successors, assigns and heirs, comprising “**Owner**”), and **Invenergy Solar Project Development LLC**, a Delaware limited liability company (together with its transferees, successors and assigns, “**Grantee**”), and in connection herewith, Owner and Grantee agree, covenant and contract as set forth in this Agreement. Owner and Grantee are sometimes referred to in this Agreement as a “**Party**” or collectively as the “**Parties**”.

1. Lease; Easement. For good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged by Owner and Grantee, upon the terms and conditions set forth in this Agreement, Owner hereby grants and conveys to Grantee an exclusive easement and lease to convert, maintain and capture the flux of solar energy over across and through the surface estate of that certain real property, including, but not limited to, the air space thereon, located in Nowata County (the “**County**”), State of **Oklahoma** consisting of approximately **eight hundred ninety (890)** acres, as more particularly described in Exhibit A attached hereto and incorporated herein (the “**Property**”) for the purposes set forth below.

1.1 Purposes of the Lease/Easement. This Agreement is solely and exclusively for solar energy purposes (as such term is broadly defined, including ancillary rights related thereto and necessary for the development and operation of Solar Facilities (as defined below)), and not for any other purpose, and Grantee shall have the exclusive right to develop and use the Property for solar energy purposes and to derive all profits therefrom, including but not limited to the following activities (collectively, “**Site Activities**”):

(a) Converting solar energy into electrical energy, and collecting, storing and transmitting the electrical energy so converted;

(b) Determining the feasibility of solar energy conversion and other power generation on the Property or on adjacent lands, including studies of solar energy emitted upon, over and across the Property and other meteorological data, environmental studies and extracting soil samples;

(c) Constructing, laying down, installing, using, replacing, relocating, reconstructing and removing from time to time, and monitoring, maintaining, repairing and operating the following only for the benefit of the Project or Projects (as defined below) (i) solar energy collection and electrical generating equipment of any kind (including, without limitation, any such equipment utilizing photovoltaic technology (collectively, “**Solar Generating Equipment**”); (ii) overhead and underground electrical distribution, collection, transmission and communications lines or cables, electric combiners, inverters, transformers and substations, energy storage facilities, and telecommunications equipment; (iii) roads and crane pads; (iv) meteorological measurement equipment; (v) control buildings, operations and maintenance facilities and buildings; and (vi) installing, operating, maintaining, repairing and replacing any other improvements, whether accomplished by Grantee or a third party authorized by Grantee, that Grantee reasonably determines are necessary, useful or appropriate to accomplish any of the foregoing (all of the above, including the Solar Generating Equipment, collectively “**Solar Facilities**”). The term “**Project**”, for the purposes of this Agreement, means an integrated solar energy generation system, consisting of Solar Facilities, that is constructed and operated on the Property, and/or adjacent lands, by Grantee, or a third party authorized by Grantee. Grantee may determine whether any particular group of Solar Facilities constitutes a single Project or multiple Projects for purposes of this Agreement, and in the case of multiple Projects, which portion of the Property shall be included within each Project.

1.2 Other Uses. During the Term when Grantee construction is or is about to occur, Owner agrees to provide Grantee with current information concerning the status and location of all other land uses occurring by, through or under Owner on the Property (including, without limitation, agricultural use, industrial use and oil and gas exploration and production activities). Any new leases or renewals and or extensions of existing leases, options to lease, seismic operations, or any other agreement made by Owner with a third party regarding the Property (including any of the foregoing related to water, oil, gas or other minerals) shall contain language that states that such third party shall not disturb, interfere with, preclude, or destroy Grantee's rights hereunder.

2. Grant of Additional Easements.

2.1 Owner hereby grants and conveys to Grantee the following additional easements upon, over, across and under the Property and all property within 300 feet of the Property that is adjacent to and owned or controlled by Owner (as such boundary may be reduced upon the release contemplated in Section 14.17, the "**Adjacent Property**"), as of the Effective Date, subject to the terms and conditions of this Agreement:

(a) Non-Obstruct. An exclusive easement to capture, use and convert the unobstructed flux of solar energy over and across the Property from all angles and from sunrise to sunset at the Property during each day of the Term;

(b) Interference. An exclusive easement for electromagnetic, audio, visual, view, light, noise, vibration, electrical, radio interference, or other effects attributable to the Solar Generating Equipment, the Project or any Site Activities;

(c) Access Easement. A non-exclusive easement for ingress to and egress from the Project over and across the Property by means of roads and lanes thereon if existing or later constructed by Owner, or otherwise by such route or routes as Grantee may construct from time to time;

(d) Other Easements. All other easements reasonably necessary to accomplish the activities permitted by this Agreement, including without limitation, generation-tie and transmission line easements, utility easements (including underground and above-ground gas, electricity, water, and telephone), drainage easements, and geotechnical and environmental testing and sampling easements.

2.2 The additional easements contemplated in Section 2.1 shall not be interpreted to permit, and do not permit, Grantee to construct any improvements, whether Solar Facilities, access roads or otherwise, on the Adjacent Property. Rather the additional easements in Section 2.1 are intended to prevent development and activities on the Adjacent Property that would obstruct Grantee's ability to collect solar energy on the Property and to permit certain interferences (as described in Section 2.1(b)) on the Adjacent Property which may result from Grantee's operations on the Property pursuant to this Agreement.

3. Term. The term of this Agreement shall commence on the Effective Date and continue for the following described periods (collectively, the "**Term**"):

3.1 Development Term. This Agreement shall be for an initial term (the "**Development Term**") commencing on the Effective Date and continuing until the earlier to occur of: (a) the fifth (5th) anniversary of the Effective Date or (b) the commencement of construction.

3.2 Construction Term. Upon the expiration of the Development Term, the term of this Agreement shall automatically extend and continue ("**Construction Term**") until the earlier to occur of: (a) the date on which Grantee begins selling electrical energy generated by substantially all of the Solar Generating Equipment to be included in the Project to a third party power purchaser or (b) the transfer or sale of all or substantially all of the Project to an independent third party or (c) eight (8) years after the

beginning of the Construction Term. Upon the occurrence of either subsections (a), (b), or (c), that date, as declared by Grantee, is hereinafter referred to as the "**Operations Date**."

3.3 First Extended Term. Upon the Operation Date, the term of this Agreement shall automatically extend for an additional twenty-five (25) year term (the "**First Extended Term**").

3.4 Second Extended Term. Provided that Grantee has not fully surrendered or terminated this Agreement, then on or before the expiration of the First Extended Term, Grantee may, at its option, extend the term of this Agreement for an additional twenty-five (25) year period (the "**Second Extended Term**"). Grantee may exercise its option to extend this Agreement for the Second Extended Term by giving Owner written notice thereof on or before the date that is one hundred and eighty (180) days prior to the expiration of the First Extended Term.

4. Payments to Owner. In consideration of the rights granted hereunder, Grantee will pay Owner the amounts set forth in Exhibit B attached hereto. Exhibit B shall not be recorded without the specific prior written consent of Grantee.

5. Ownership of Solar Facilities. Owner shall have no ownership, lien, security or other interest in any Solar Facilities installed on the Property, or any profits derived therefrom, and Grantee may remove any or all Solar Facilities at any time. Except for those payments described in this Agreement, including Exhibit B, Owner shall not be entitled to any other payments or benefits accrued by or from the Project, including, but not limited to, renewable energy credits, environmental credits or tax credits.

6. Taxes. Owner shall pay all taxes, assessments, or other governmental charges, general and specific, that shall or may during the Term be imposed on, or arise in connection with the Property itself; provided, however, during the Term Grantee shall be liable for any incremental increase in such taxes, assessments, or other governmental charges directly resulting from the presence of the Solar Facilities installed upon the Property ("**Grantee Taxes**"). To the extent the applicable taxing authority provides a separate tax bill for the Grantee Taxes to Grantee, Grantee shall pay such Grantee Taxes directly to the applicable taxing authorities prior to the date such Grantee Taxes become delinquent. If a separate tax bill for the Grantee Taxes is not provided to Grantee, Grantee shall pay the Grantee Taxes within thirty (30) days following receipt of written demand from Owner of the amount of the Grantee Taxes with a copy of the applicable tax bill. Both Parties shall pay their respective tax bills when due and if either Party fails to make such payments when due, then the other Party may, but shall not be obligated to, pay the taxing authorities the entire amount due on the tax bill, including any interest and/or penalties and obtain reimbursement for such amount paid on behalf of such Party plus interest (computed from the date of full payment) at a rate equal to the sum of: (i) two percent (2%) per annum; plus, (ii) the prime lending rate as from time to time may be published by The Wall Street Journal under the "Money Rates" section; provided, that in no event shall such total interest exceed the maximum rate permitted by applicable law. If Grantee pays taxes, assessments, and/or real property taxes on behalf of Owner that are Owner's obligation hereunder, Grantee may offset the amount of such payments against amounts due Owner under this Agreement.

7. Indemnity/Liability.

7.1 Each Party (the "**Indemnifying Party**") shall defend, indemnify and hold harmless the other Party and such other Party's Related Persons (as defined below)(each, an "**Indemnified Party**") from and against any and all third party (excluding Related Persons) claims, litigation, actions, proceedings, losses, damages, liabilities, obligations, costs and expenses, including reasonable attorneys', investigators' and consulting fees, court costs and litigation expenses (collectively, "**Claims**") suffered or incurred by such Indemnified Party, arising from the negligence or intentional misconduct of the Indemnifying Party.

Notwithstanding the foregoing to the contrary, Grantee may elect, upon written notice, to control any or all aspects of the defense of any legal action covered by the prior sentence.

7.2 A Party's liability to the other Party for a Claim partially caused by, arising from or contributed by the negligence or intentional misconduct of such other Party (or a Related Person) is diminished by such other Party's (or Related Person's) contributory negligence or misconduct. A Party is not liable to the other Party in the event a Claim is partially caused by, arising from or contributed by the negligence or intentional misconduct of such other Party (or a Related Person) where such other Party's (or Related Person's) contributory fault or misconduct is more than fifty percent of the total fault or misconduct of all parties involved in the Claim.

7.3 Except for payments expressly required herein (such as crop damage compensation), in no event, whether as a result of breach of contract, warranty, indemnity, tort (including negligence), strict liability or otherwise, shall either Party be liable to the other Party for loss of profit or revenues, loss of business opportunities or for any other special, consequential, incidental, indirect or exemplary damages.

7.4 In no event shall Grantee or its Related Persons be liable to Owner for property damage or personal injuries to Owner or its Related Persons attributable to risks of known and unknown dangers associated with normal day-to-day operation of electrical generating facilities, such as noise, electromagnetic fields, and glare.

7.5 In no event shall either Party or its Related Persons be liable to the Other Party for expenses incurred in such other Party's lawful enforcement of its rights under this Agreement for a default during any applicable cure period.

7.6 As used herein the term "Related Person" shall mean:

(a) With respect to Owner, any principals, employees, servants, guests, invitees or contractors, subcontractors or licensees of Owner or those third persons over whom Owner exercises actual control; or

(b) With respect to Grantee, any affiliates, contractors, lessees, and sublessees of Grantee, and each of their respective, principals, officers, employees, servants, agents, representatives, subcontractors, licensees, invitees, and/or guests.

7.7 This Section 7 shall survive the expiration or earlier termination of this Agreement.

8. Grantee's Representations, Warranties, and Covenants. Grantee hereby represents, warrants, and covenants to Owner that:

8.1 Grantee's Authority. Grantee has the unrestricted right and authority to execute this Agreement. Each person signing this Agreement on behalf of Grantee is authorized to do so. Upon execution by all Parties hereto, this Agreement shall constitute a valid and binding agreement enforceable against Grantee in accordance with its terms.

8.2 Minimal Impacts. Grantee agrees to conduct its Site Activities and to locate and operate its Solar Facilities in such a way as to reasonably minimize impacts to the Property and to Owner's activities on the Property, to the extent practical, without negatively impacting the Solar Facilities. If Owner's Property is fenced, all access roads constructed by Grantee on the Property shall be gated by Grantee at Grantee's expense

8.3 Insurance. Grantee shall, at its expense, be responsible for assuring that insurance coverages, as would be customary and reasonable for similarly situated companies performing the work carried out by Grantee at such time, are maintained, including, without limitation, adequate coverage to cover any personal injuries or accidents that could reasonably be expected as a direct result of the Site

Activities conducted by Grantee or its Related Persons on the Property. If Oklahoma law imposes additional requirements regarding Grantee's insurance beyond those required by this paragraph, Grantee will comply with such requirements.

8.4 Requirements of Governmental Agencies. Grantee, at its expense, shall comply in all material respects with valid laws, ordinances, statutes, orders, and regulations of any governmental agency applicable to the Solar Facilities. Grantee shall have the right, in its sole discretion, to contest by appropriate legal or administrative proceedings, the validity or applicability to Grantee, the Property or Solar Facilities of any law, ordinance, statute, order, regulation, property assessment, or the like now or hereafter made or issued by any federal, state, county, local or other governmental agency or entity. Any such contest or proceeding shall be controlled and directed by Grantee.

8.5 Construction Liens. Grantee shall keep the Property free and clear of all liens and claims of liens for labor and services performed on, and materials, supplies, or equipment furnished to, the Property in connection with Grantee's use of the Property pursuant to this Agreement; provided, however, that if Grantee wishes to contest any such lien, Grantee shall, at Grantee's sole discretion and within sixty (60) days after it receives written notice of the filing of such lien, either (i) provide a bond to Owner for the amount of such lien, or (ii) provide Owner with title insurance insuring Owner's interest in the Property against such lien claim.

8.6 Hazardous Materials. Neither Grantee nor its Related Persons shall violate any federal, state, or local law, ordinance, or regulation relating to the generation, manufacture, production, use, storage, release, discharge, disposal, transportation or presence of asbestos-containing materials, petroleum, explosives or any other substance, material, or waste which is now or hereafter classified as hazardous or toxic, or which is regulated under current or future federal, state, or local laws or regulations, on or under the Property (each, a "**Hazardous Material**"). Grantee shall promptly notify Owner if any violation occurs.

8.7 Warranties. Grantee has fully inspected and investigated the Property, and has independently determined the condition of such premises and the suitability of the same for its purposes. EXCEPT AS EXPRESSLY PROVIDED HEREIN, OWNER HAS MADE NO REPRESENTATION OR WARRANTY, EXPRESS OR IMPLIED, AS TO THE CONDITION OR QUALITY OF THE PROPERTY, NOW OR IN THE FUTURE, AND GRANTEE IS RELYING SOLELY UPON ITS OWN DETERMINATIONS AND CONCLUSIONS ABOUT SUCH CONDITION, QUALITY AND/OR SUITABILITY. Grantee and its agents, servants or employees, and its independent contractors, expressly assume all risk of travel over and upon the Property.

8.8 Collection System Lines. Outside of the Developed Property, Grantee shall, at its sole expense, cause all wires, cables and lines on the Property to either be buried a minimum of thirty-six inches (36") below the surface of pasture land, and a minimum of forty-two inches (42") below the surface of cultivated land on the Property, or sufficiently elevated on overhead poles such that they shall have the minimum impact on the Property.

9. Owner's Representations, Warranties, and Covenants. Owner hereby represents, warrants, and covenants as follow:

9.1 Owner's Authority. Owner is the sole fee simple owner of the Property, subject to easements, covenants, restrictions and other matters of record, and has the unrestricted right and authority to execute this Agreement and to grant to Grantee the rights granted hereunder. Each person signing this Agreement on behalf of Owner is authorized to do so. Upon execution by all Parties hereto, this Agreement shall constitute a valid and binding agreement enforceable against Owner in accordance with its terms. Each person/entity comprising Owner, as listed in the preamble to this Agreement, owns the fractional interest in the Property set forth below:

Owner:	Green Bandit, LLC.
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Fractional Ownership:	100%
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9.2 No Interference. Owner's activities and any grant of rights Owner makes to any person or entity, shall not, currently or prospectively, disturb or interfere with: the construction, installation, maintenance, or operation of the Solar Facilities, whether located on the Property or elsewhere; access over the Property to such Solar Facilities; any Site Activities; or the undertaking of any other activities permitted hereunder. Without limiting the generality of the foregoing, Owner shall not erect any structures, plants or other equipment, or enter into any third party agreements or amend or extend any existing agreements ("Third Party Agreements") or undertake any other activities (an "Owner Action" or collectively the "Owner Actions") that may: (i) interfere with Grantee's right to install Solar Facilities on any portion of the Property, (ii) potentially cast a shadow onto the Solar Facilities, (iii) cause a decrease in the output or efficiency of any Solar Facilities, (iv) interrupt the flux of solar energy upon, across and over any portion of the Property used or to be used by the Solar Facilities, or (v) otherwise interfere with Grantee's operations on the Property (each an "Interference"). Prior to undertaking an Owner Action, that may cause an Interference, Owner shall consult with Grantee to confirm that such Owner Action will not cause any Interference. If Grantee reasonably determines the Owner Action could cause an Interference, then Owner shall not be permitted to undertake such Owner Action. Owner shall not disturb or permit the disturbance of the subsurface such that may impact in any way the structural integrity or the operations and maintenance of the Solar Facilities. Grantee shall have the right to trim or remove existing trees for the purpose of not interfering with the flux of solar energy from any angle upon, across and over the Property.

9.3 Liens and Tenants. To Owner's knowledge, except as may be disclosed in the real property records of the County, or as disclosed by Owner in writing to Grantee on or prior to the Effective Date, as of the Effective Date Owner represents there are no leases, easements, licenses, rights of way, mortgages, deeds of trust, liens, security interests, mechanic's liens or any other encumbrances created by, through or under Owner encumbering all or any portion of the Property that could interfere with Grantee's operations on the Property, including mechanic's liens. If such Owner representation and warranty is breached and such breach is not caused by Grantee, then Owner shall reasonably cooperate and assist Grantee in removing or limiting any such matter that is an Interference, including, but not limited to, obtaining a subordination and non-disturbance agreement where Grantee deems it necessary, with terms and conditions reasonably requested by Grantee to protect its rights hereunder, from each party that holds such rights (recorded or unrecorded), and in the case of monetary liens such as mechanic's liens, bonding over any such liens in an amount that may be reasonably requested by Grantee, provided however, Owner shall not be obligated to incur costs in undertaking the foregoing efforts, and Grantee shall be solely responsible for any such costs in connection therewith.

9.4 Requirements of Governmental Agencies and Setback Waiver. Owner shall assist and reasonably cooperate with Grantee, at no out-of-pocket expense to Owner, in complying with or obtaining any land use permits and approvals, building permits, environmental impact reviews, subdivisions, platting, tax abatements or any other permits and approvals reasonably necessary for the financing, construction, installation, monitoring, repair, replacement relocation, maintenance, operation or removal of Solar Facilities, including, but not limited to, execution of applications and documents reasonably necessary for such approvals and permits, and participating in any appeals or regulatory proceedings respecting the Solar Facilities. To the extent permitted by law, Owner hereby waives enforcement of any applicable setback requirements respecting the Solar Facilities to be placed on or near the Property that are reasonably necessary, in Grantee's sole and absolute discretion, to carry out Grantee's power-generating activities on or near the Property.

9.5 Hazardous Materials. Neither Owner nor its Related Persons shall violate any federal, state or local law, ordinance or regulation relating to the generation, manufacture, production, use, storage, release, discharge, disposal, transportation or presence of any Hazardous Material. Owner shall promptly notify Grantee if any such violation occurs. To the best of Owner's knowledge, (i) no underground tanks are now located or at any time in the past have been located on the Property or any portion thereof, (ii) no Hazardous Material has been generated, manufactured, transported, produced, used, treated, stored, released, disposed of or otherwise deposited in or on or allowed to emanate from the Property or any portion thereof other than as permitted by applicable law and (iii) there are no Hazardous Materials in, on or emanating from the Property or any portion thereof which may support a claim or cause of action under any applicable law. Owner certifies it has never received any notice or other communication from any governmental authority alleging that the Property is or was in violation of any applicable law.

9.6 Litigation. No litigation is pending, and, to the best of Owner's knowledge, no actions, claims or other legal or administrative proceedings are pending, threatened or anticipated with respect to, or which could affect, the Property. If Owner learns that any such litigation, action, claim or proceeding is threatened or has been instituted, Owner shall promptly deliver notice thereof to Grantee and provide Grantee with periodic updates of the status of said litigation, action, claim or proceeding that is ongoing.

9.7 Title Insurance and Financing. Owner agrees that Owner shall execute and deliver to Grantee any documents reasonably required by the title insurance company and/or a financing party within ten (10) business days after presentation of said documents by Grantee; provided, however, in no event shall such documents materially increase any obligation or materially decrease any right of Owner hereunder. Owner shall have no obligation to initiate the process to obtain title insurance on behalf of the Grantee.

9.8 Division into Separate Agreements. Grantee may divide the Property into two (2) or more separate solar energy projects or phases of development if such division becomes necessary to further the development of the Solar Facilities. If Grantee elects to divide the Property into two (2) or more solar energy projects or phases of development, then Owner shall, within twenty (20) days after written request from Grantee, and without demanding any additional consideration, bifurcate this Agreement by entering into and delivering to Grantee two (2) stand-alone new agreements (which shall supersede and replace this Agreement) that provide Grantee with separate leasehold estates in different portions of the Property, as designated by Grantee. Each of such new agreements shall: (i) specify the portion(s) of the Property to be covered thereby (and the term "Property", as used therein, shall refer only to such portion(s)), (ii) contain the same terms and conditions as this Agreement (except for any requirements that have been fulfilled by Grantee, any assignee, or any other person or entity prior to the execution of such new agreements, and except for any modifications that may be required to ensure that Grantee's and Owner's respective combined obligations under such new leases do not exceed their respective obligations under this Agreement) and be in a form reasonably acceptable to Grantee and Owner; (iii) be for a term equal to the then-remaining term of this Agreement; (iv) contain a grant of access, transmission, communications, utility and other easements for the benefit of the bifurcated leasehold estates, covering such portion or portions of the Property as Grantee may designate (but only to the extent permitted in this Agreement); (v) require payment to Owner of only an acreage-proportionate part of the amounts hereof; and (vi) to the extent permitted by law, enjoy the same priority as this Agreement over any lien, encumbrance or other interest against the Property.

9.9 Additional Easements. Grantee, in its sole discretion and without further act of Owner, shall have the right to grant to the transmitting public utility company the right to construct, operate and maintain on the Property an electric substation and interconnection and switching facilities, pursuant to any lease, easement or other agreement used or proposed by the public utility company for the exclusive purpose of collecting, generating, switching and transmitting the solar energy created by the Project. All

improvements constructed pursuant to such easement or agreement are deemed to be "Solar Facilities" and subject to the compensation structure set forth in Exhibit B attached hereto. If requested by such public utility company or Grantee, Owner shall, for no additional consideration other than the aforementioned compensation, within fifteen (15) days after such request, grant such easement, or enter into such other agreement, directly to or with such public utility company. Such easement or agreement shall be in a form reasonably acceptable to Owner. Grantee and Owner shall cooperate with transmitting public utility company to determine a mutually acceptable location for such substation.

9.10 Condemnation. If all or part of the Property is proposed to be taken as a result of any action or proceeding in eminent domain, or is proposed to be transferred in lieu of condemnation to any authority entitled to exercise the power of eminent domain (collectively, a "Taking"), Owner shall provide Grantee with reasonable advance notice of any impending proceeding or meeting related to such Taking and shall not in the absence of Grantee settle with the Taking authority or agree on compensation for such Taking. The Agreement shall terminate as to any portion of the Property so condemned or taken (except in the case of a temporary Taking after the duration of which Grantee desires to continue the Agreement, and the Lease Term shall be extended, in such event, by the duration of such temporary Taking). Any award or other compensation ("Award") payable as a consequence of such Taking shall be paid as follows:

(a) Owner shall first be entitled to receive out of the Award the value of Owner's fee interest in the Property, valued as if no Solar Facilities were on the Property;

(b) Grantee shall next be entitled to receive out of the Award (A) the value of the Solar Facilities installed on the Property, less the value of the Solar Facilities removed and retained by Grantee in connection with such Taking; (B) any other compensation or benefits payable by law as a consequence of the loss or interruption of Grantee's business and the other costs and expenses incurred by Grantee as consequence of the Taking; and (C) the remaining present value of Grantee's interest in the Property (determined at the time of the Taking), including the value of Grantee's interests under this Agreement to the extent such value is not already accounted for in subparagraphs (A) and (B) above;

(c) Owner shall then be entitled to receive out of the Award, taking into account the leasehold and easement estates created by this Agreement, the estimated amounts that would have been paid by Grantee hereunder, and

(d) Owner shall be entitled to any remainder of the Award.

9.13 Further Amendments to Property Description. In the event that it is determined that there are any inaccuracies in or changes required to the legal description of the Property contained in Exhibit A, the validity of this Agreement shall not be affected, and, upon the request of Grantee, Owner shall amend the legal description of the Property contained in Exhibit A of this Agreement and in Exhibit A of the memorandum of this Agreement to reflect the legal description of the Property contained in a title commitment, other title report or survey obtained by Grantee for the Property.

10. Assignment.

10.1 Collateral Assignments. Grantee shall have the absolute right in its sole and exclusive discretion, without obtaining the consent of Owner, to finance, mortgage, encumber, hypothecate, pledge or transfer to one or more Mortgagees any and all of the rights granted hereunder, including the easements granted in Section 2, and/or any or all rights or interests of Grantee in the Property, in this Agreement, or in any or all of the Solar Facilities.

10.2 Non-Collateral Assignments. Subject to the foregoing, Grantee shall have the right, without the prior consent of Owner, to sell, convey, lease, sublease, assign or transfer (including granting co-easements, separate easements, subeasements, and including changing the ownership of Grantee) (a "Transfer") any or all of its rights hereunder in and to any or all of the Property provided such

transfer is related to a Project. Grantee shall be relieved of all of its obligations arising under this Agreement, as to all or such portion of its interests in the Property transferred, from and after the effective date of such transfer, provided such rights and obligations have been assumed by such transferee, except in connection with a sublease for which Grantee and its transferee shall remain jointly and severally liable therefor. All Transfers shall be subject to the terms of this Lease. If a default occurs while the Project or any part thereof are subject to a subletting, then Owner, in addition to its other remedies, may collect directly from such sublessee all rent becoming due to Grantee and apply such rents against Grantee's payment obligations hereunder. Grantee authorizes its sublessees to make payments of rent directly to Owner upon receipt of notice from Owner to do so. Grantee shall pay to Owner, immediately upon receipt thereof, the excess of (i) all compensation received by Grantee for a sublease over (ii) Grantee's payment obligations hereunder (or, with respect to any subletting of less than the entirety of the Project, the payment obligations allocable to the portion of the Project covered by the sublease).

10.3 Acquisition of Interest. The acquisition of all interests, or any portion of interest, in Grantee by another person shall not require the consent of Owner or constitute a breach of any provision of this Agreement and Owner shall recognize the person as Grantee's proper successor.

11. Default and Remedies.

11.1 If a Party defaults in or otherwise fails to perform an obligation under this Agreement, the non-defaulting Party shall not have the right to exercise any remedies hereunder if the default is cured by the defaulting Party within sixty (60) days of receiving written notice of such default specifying in detail the default and the requested remedy (a "Notice of Default"); provided, that if the nature of the default requires, in the exercise of commercially reasonable diligence, more than sixty (60) days to cure, the non-defaulting Party shall not have the right to exercise any remedies hereunder as long as the defaulting Party commences performance of the cure within sixty (60) days of receipt of Notice of Default and thereafter completes such cure with commercially reasonable diligence. Further, if the Parties have a good faith dispute as to whether a payment is due hereunder, the alleged defaulting Party may deposit the amount in controversy (not including claimed consequential, special, exemplary or punitive damages) into escrow with any reputable third party escrowee, or may interplead the same, which amount shall remain undistributed and shall not accrue interest penalties, and no default shall be deemed to have occurred, until final decision by a court of competent jurisdiction or upon agreement by the Parties. No such deposit shall constitute a waiver of the defaulting Party's right to institute legal action for recovery of such amounts.

11.2 Remedies. Except as qualified by Section 12 regarding Mortgagee Protections, should a default remain uncured beyond the applicable cure periods, the non-defaulting Party shall have the right to exercise any and all remedies available to it at law or in equity, all of which remedies shall be cumulative, including the right to enforce this Agreement by injunction, specific performance or other equitable relief. Notwithstanding anything in this Agreement to the contrary or any rights or remedies Owner might have at law or in equity, if any of Grantee's Solar Facilities are then located on the Property and Grantee fails to perform any of its obligations hereunder beyond applicable cure periods, Owner shall be limited to pursuing damages and Owner may not commence any action to terminate or cancel this Agreement.

12. Mortgagee Protection. In the event that any mortgage, deed of trust, financing statement, or other security interest in this Agreement or in any Solar Facilities, or any portion thereof (a "Mortgage"), is entered into by Grantee then any person who is the mortgagee, grantee or beneficiary of a Mortgage (a "Mortgagee") shall, for so long as its Mortgage is in existence and until the lien thereof has been extinguished, be entitled to the protections set forth in this Section 12. Grantee shall send written notice to Owner of the name and address of any such Mortgagee; provided that failure of Grantee to give notice of any such Mortgagee shall not constitute a default under this Agreement and shall not invalidate such Mortgage.

12.1 Mortgagee's Right to Possession, Right to Acquire and Right to Assign. A Mortgagee shall have the absolute right: (i) to assign its security interest; (ii) to enforce its lien and acquire title to the leasehold and/or easement estate by any lawful means; (iii) to take possession of and operate the Solar Facilities or any portion thereof, to exercise all of Grantee's rights hereunder, and to perform all obligations to be performed by Grantee hereunder, or to cause a receiver to be appointed to do so; and (iv) to acquire the leasehold and/or easement estate by foreclosure or by an assignment in lieu of foreclosure and thereafter to assign or transfer the leasehold and/or easement estate to a third party. Owner's consent shall not be required for the acquisition of the encumbered leasehold, easement or subeasement estate by a third party who acquires the same by foreclosure or assignment in lieu of foreclosure.

12.2 Notice of Default; Opportunity to Cure. As a precondition to exercising any rights or remedies as a result of any default of Grantee, Owner shall give a Notice of Default to each Mortgagee of which it has notice, concurrently with delivery of such notice to Grantee. In the event Owner gives a Notice of Default, the following provisions shall apply:

(a) A "Monetary Default" means Grantee's failure to pay when due any monetary obligation of Grantee under this Agreement. Any other default by Grantee is a "Non-Monetary Default."

(b) The Mortgagee shall have the same period after receipt of the Notice of Default to remedy the default, or cause the same to be remedied, as is given to Grantee, plus, in each instance, the following additional time periods: (i) thirty (30) days, for a total of ninety (90) days after receipt of the Notice of Default in the event of any Monetary Default; and (ii) sixty (60) days, for a total of one hundred twenty (120) days after receipt of the Notice of Default in the event of any Non-Monetary Default, provided that such 120-day period shall be extended for the time reasonably required to complete such cure, including the time required for the Mortgagee to perfect its right to cure such Non-Monetary Default by obtaining possession of the Property (including possession by a receiver) or by instituting foreclosure proceedings, provided the Mortgagee acts with reasonable and continuous diligence. The Mortgagee shall have the absolute right to substitute itself for Grantee and perform the duties of Grantee hereunder for purposes of curing such default. Owner expressly consents to such substitution, agrees to accept such performance, and authorizes the Mortgagee (or its employees, agents, representatives or contractors) to enter upon the Property to complete such performance with all the rights, privileges and obligations of the original Grantee hereunder. Owner shall not take any action to terminate this Agreement in law or equity prior to the expiration of the cure periods available to a Mortgagee as set forth above.

(c) During any period of possession of the Property by a Mortgagee (or a receiver requested by such Mortgagee) and/or during the pendency of any foreclosure proceedings instituted by a Mortgagee, the Mortgagee shall pay or cause to be paid all monetary charges payable by Grantee hereunder which have accrued and are unpaid at the commencement of said period and those which accrue thereafter during said period. Following acquisition of Grantee's leasehold and easement estate by the Mortgagee or its assignee or designee as a result of either foreclosure or acceptance of an assignment and/or deed in lieu of foreclosure, or by a purchaser at a foreclosure sale, this Agreement shall continue in full force and effect and the Mortgagee or party acquiring title to Grantee's leasehold and/or easement estate shall, as promptly as reasonably possible, commence the cure of all of Grantee's defaults which are reasonably susceptible of being cured by the Mortgagee or party acquiring title, hereunder and thereafter diligently process such cure to completion, whereupon such defaults shall be deemed cured without incurring any default hereunder.

(d) Any Mortgagee or other party who acquires Grantee's leasehold and/or easement interest pursuant to foreclosure or assignment in lieu of foreclosure shall be liable to perform the obligations imposed on Grantee by this Agreement for such interest so long as such Mortgagee or other party has ownership of the leasehold and/or easement estate or possession of the Property.

(e) Neither the bankruptcy nor the insolvency of Grantee shall be grounds for terminating this Agreement as long as all material obligations of Grantee under the terms of this Agreement are performed by the Mortgagee in accordance with the terms hereunder.

(f) Nothing herein shall be construed to extend this Agreement beyond the Term or to require a Mortgagee to continue foreclosure proceedings after a default has been cured. If the default is cured and the Mortgagee discontinues foreclosure proceedings, this Agreement shall continue in full force and effect.

12.3 New Agreement to Mortgagee. If this Agreement terminates because of Grantee's default or if the leasehold and/or easement estate is foreclosed upon, or if this Agreement is rejected or disaffirmed pursuant to bankruptcy law or other law affecting creditors' rights, Owner shall, upon written request from any Mortgagee within ninety (90) days after such event, enter into a new agreement for the Property on the following terms and conditions:

(a) The terms of the new agreement shall commence on the date of termination, foreclosure, rejection or disaffirmance and shall continue for the remainder of the Term, at the same rent and subject to the same terms and conditions set forth in this Agreement.

(b) The new agreement shall be executed within thirty (30) days after receipt by Owner of written notice of the Mortgagee's election to enter a new agreement, provided said Mortgagee: (i) pays to Owner all rent and other monetary charges payable by Grantee under the terms of this Agreement up to the date of execution of the new agreement, as if this Agreement had not been terminated, foreclosed, rejected or disaffirmed; (ii) performs all other obligations of Grantee under the terms of this Agreement, to the extent performance is then due and susceptible of being cured and performed by the Mortgagee; and (iii) agrees in writing to perform, or cause to be performed, all non-monetary obligations which have not been performed by Grantee and would have accrued under this Agreement up to the date of commencement of the new agreement, except those obligations which constitute non-curable defaults. Any new agreement granted to the Mortgagee shall enjoy the same priority as this Agreement over any lien, encumbrances or other interest created by Owner.

(c) At the option of the Mortgagee, the new agreement may be executed by a designee of such Mortgagee without the Mortgagee assuming the burdens and obligations of Grantee thereunder.

(d) If more than one Mortgagee makes a written request for a new agreement pursuant hereto, the new agreement shall be delivered to the Mortgagee requesting such new agreement whose Mortgage is prior in lien, and the written request of any other Mortgagee whose lien is subordinate shall be void and of no further force or effect.

(e) The provisions of this Section 12 shall survive the termination, rejection or disaffirmance of this Agreement and shall continue in full force and effect thereafter to the same extent as if this Section 12 were a separate and independent contract made by Owner, Grantee and such Mortgagee, and, from the effective date of such termination, rejection or disaffirmance of this Agreement to the date of execution and delivery of such new agreement, such Mortgagee may use and enjoy said Property without hindrance by Owner or any person claiming by, through or under Owner, provided that all of the conditions for a new agreement as set forth herein are complied with.

12.4 Mortgagee's Consent to Amendment, Termination or Surrender. Notwithstanding any provision of this Agreement to the contrary, the Parties agree that so long as there exists an unpaid Mortgage, this Agreement shall not be modified or amended and Owner shall not accept a surrender of the Property or any part thereof or accept a cancellation, termination or release of this Agreement from Grantee prior to expiration of the Term without the prior written consent of the Mortgagee. This provision is for the express benefit of and shall be enforceable by such Mortgagee.

12.5 No Waiver. No payment made to Owner by a Mortgagee shall constitute an agreement that such payment was, in fact, due under the terms of this Agreement; and a Mortgagee, having made any payment to Owner pursuant to Owner's wrongful, improper or mistaken notice or demand, shall be entitled to the return of any such payment.

12.6 No Merger. There shall be no merger of this Agreement, or of the leasehold or easement estate created by this Agreement, with the fee estate in the Property by reason of the fact that this Agreement or the leasehold estate or the easement estate or any interest therein may be held, directly or indirectly, by or for the account of any person or persons who shall own the fee estate or any interest therein, and no such merger shall occur unless and until all persons at the time having an interest in the fee estate in the Property and all persons (including Mortgagee) having an interest in this Agreement or in the leasehold estate or in the estate of Owner and Grantee shall join in a written instrument effecting such merger and shall duly record the same.

12.7 Estoppel Certificates, Etc. Owner shall execute such estoppel certificates (certifying as to such matters as Grantee may reasonably request, including without limitation that no default by Grantee then exists under this Agreement, if such be the case) and/or consents to assignment (whether or not such consent is actually required) and/or non-disturbance agreements as Grantee, any transferee of Grantee or Mortgagee may reasonably request from time to time. The failure of Owner to deliver any estoppel certificate within fifteen (15) days after Grantee's written request therefor shall be conclusive evidence that (i) this Agreement is in full force and effect and has not been modified; (ii) any amounts payable by Grantee to Owner have been paid through the date of such written request; (iii) there are no uncured defaults by Grantee; and (iv) the other certifications requested by Grantee in its estoppel, are in fact, true and correct.

13. Termination.

13.1 Grantee's Right to Terminate. Grantee shall have the right to terminate this Agreement as to all or any part of the Property at any time and without cause, effective upon written notice to Owner from Grantee.

13.2 Owner's Right to Terminate. Subject to Section 12.4, Owner shall have the right to terminate all or any portion of its rights in this Agreement after the fifth (5th) anniversary of the Effective Date if, at the time Owner's written termination notice is delivered, Grantee has not commenced construction of Solar Facilities for the Project on the Property. The terms "commencing construction" and "commencement of construction" as used in this Agreement shall mean that date on which Grantee begins grading of the Property for the installation of the Solar Facilities.

13.3 Effect of Termination. Upon termination of this Agreement, Grantee shall, as soon as practicable thereafter, but not later than one (1) year after the termination, remove above-ground and below-ground Solar Facilities from the Property, without additional charge or rental for such entry and removal, and without such entry constituting a holdover. All Property disturbed by Grantee shall be restored to a condition reasonably similar to its original condition as it existed upon the Effective Date. If Grantee fails to remove such Solar Facilities within twelve (12) months of termination of this Agreement, or such longer period as Owner may provide by extension, Owner shall have the right to restore the Property and remove, or to cause removal of, any property owned by Grantee to the extent required by Grantee under this Section 13.3, and the right to receive reimbursement, less the salvage value of the Solar Facilities, from Grantee for any remaining amounts reasonably incurred for removal and restoration of the Property. If required by Oklahoma law, (a) Grantee will submit evidence of decommissioning financial security to the Oklahoma Corporation Commission on or before the deadlines imposed by such law, (b) the form of such financial security shall comply with the requirements of such law, and (c) the amount of such financial security shall comply with such law. If Oklahoma law imposes additional or more restrictive requirements regarding Grantee's restoration of the Property or decommissioning of the Solar Facilities beyond those

required by this paragraph (including, without limitation, bonding), Grantee will comply with such requirements.

14. Miscellaneous.

14.1 Force Majeure. If performance of this Agreement or of any obligation hereunder is prevented or substantially restricted or interfered with by reason of an event of Force Majeure (defined below), the affected Party, upon giving notice to the other Party, shall be excused from such performance to the extent of and for the duration of such prevention, restriction or interference, and the Term or any other time periods herein shall be extended for such period of time. The affected Party shall use its reasonable efforts to avoid or remove such causes of nonperformance and shall continue performance hereunder whenever such causes are removed. "Force Majeure" means fire, earthquake, flood, or other casualty, condemnation or accident; strikes or labor disputes; war, acts of terrorism, civil strife or other violence; any law, order, proclamation, regulation, ordinance, action, demand or requirement of any government agency or utility; or any other act or condition beyond the reasonable control of a Party hereto.

14.2 Confidentiality. To the fullest extent allowed by law, Owner shall maintain in the strictest confidence, and Owner shall require each Related Person of Owner to maintain in the strictest confidence, for the sole benefit of Grantee, all information pertaining to the financial terms of or payments under this Agreement, Grantee's site or product design, methods of operation, methods of construction, power production or availability of the Solar Facilities, and the like, whether disclosed by Grantee or discovered by Owner, unless such information either (i) is in the public domain by reason of prior publication through no act or omission of Owner or any Related Person of Owner, or (ii) was already known to Owner at the time of disclosure and which Owner is free to use or disclose without breach of any obligation to any person or entity. To the fullest extent permitted by law, Owner shall not use such information for its own benefit, publish or otherwise disclose it to others, or permit its use by others for their benefit or to the detriment of Grantee. Notwithstanding the foregoing, Owner may disclose such information to any auditor or to Owner's family members, lenders, attorneys, accountants and other personal advisors; any prospective purchaser of or lenders for the Property; or pursuant to lawful process, subpoena or court order; provided Owner in making such disclosure advises the party receiving the information of the confidentiality of the information and obtains the agreement of said party not to disclose the information.

14.3 Successors and Assigns. This Agreement shall inure to the benefit of and be binding upon Owner and Grantee and, to the extent provided in any assignment or other transfer under Section 10 hereof, any transferee, and their respective heirs, transferees, successors and assigns, and all persons claiming under them. References to Grantee in this Agreement shall be deemed to include transferees of Grantee that hold a direct ownership interest in this Agreement and actually are exercising rights under this Agreement to the extent consistent with such interest.

14.4 Memorandum; Recording. At Grantee's option: (i) Grantee may record a copy of this Agreement, excluding Exhibit B, or (ii) upon request from Grantee, Owner shall execute in recordable form, and Grantee may then record, a memorandum of this Agreement substantially in the form of Exhibit D attached hereto, incorporating only those non-substantive changes to the form as may be required by the applicable jurisdiction in which recording is sought and to reflect the terms of this Agreement. Owner hereby consents to the recordation of the interest of a transferee of Grantee in the Property. With respect to the First Extended Term and Second Extended Term, upon request from Grantee, Owner shall execute, in recordable form, and Grantee may then record, a memorandum evidencing the First Extended Term and Second Extended Term, as applicable; provided that the execution of such memorandum is not necessary for such First Extended Term or Second Extended Term to be effective.

14.5 Notices. All notices or other communications required or permitted by this Agreement, including payments to Owner, shall be in writing and shall be deemed given when personally delivered to Owner or Grantee, or in lieu of such personal delivery services, the same day if sent via

facsimile with confirmation, the next business day if sent via overnight delivery or five (5) days after deposit in the United States mail, first class, postage prepaid, certified, addressed as follows:

If to Owner:

Green Bandit, LLC
P O Box 1004
Vinita, OK 74301

If to Grantee:

Invenergy Solar Project Development
LLC

c/o Invenergy LLC
One S. Wacker Drive, Suite 1800
Chicago, Illinois 60606
Attn: General Counsel

Fax:312-224-1444

Either Party may change its address for purposes of this paragraph by giving written notice of such change to the other Parties in the manner provided in this paragraph.

14.6 Entire Agreement; Amendments. This Agreement, together with all exhibits, including Exhibit C attached hereto, constitutes the entire agreement between Owner (and its respective successors, heirs, affiliates and assigns) and Grantee (and its respective successors, heirs, affiliates and assigns) respecting its subject matter, and supersedes any and all oral or written agreements. All of the provisions of the Exhibits shall be treated as if such provisions were set forth in the body of this Agreement and shall represent binding obligations of each of the Parties as part of this Agreement. Any agreement, understanding or representation respecting the Property, or any other matter referenced herein not expressly set forth in this Agreement or a previous writing signed by both Parties is null and void. No purported modifications or amendments, including without limitation any oral agreement (even if supported by new consideration), course of conduct or absence of a response to a unilateral communication, shall be binding on either Party unless in a writing signed by both Parties. Provided that no material default in the performance of Grantee's obligations under this Agreement shall have occurred and remain uncured, Owner shall cooperate with Grantee in amending this Agreement from time to time to include any provision that may be reasonably requested by Grantee for the purpose of implementing the provisions contained in this Agreement or for the purpose of preserving the security interest of any transferee of Grantee or Mortgagee.

14.7 Legal Matters. This Agreement shall be governed by and interpreted in accordance with the laws of the State of Oklahoma. If the Parties are unable to resolve amicably any dispute arising out of or in connection with this Agreement, they agree that such dispute shall be resolved in the state courts located in the County. The Parties agree that any rule of construction to the effect that ambiguities are to be resolved in favor of either Party shall not be employed in the interpretation of this Agreement and is hereby waived. The prevailing Party in any action or proceeding for the enforcement, protection or establishment of any right or remedy under this Agreement shall be entitled to recover its reasonable attorneys' fees and costs in connection with such action or proceeding from the non-prevailing Party.

14.8 Partial Invalidity. Should any provision of this Agreement be held, in a final and unappealable decision by a court of competent jurisdiction, to be either invalid, void or unenforceable, the remaining provisions hereof shall remain in full force and effect, unimpaired by the holding. Notwithstanding any other provision of this Agreement, the Parties agree that in no event shall the Term, or the term of any easement granted herein be longer than, respectively, the longest period permitted by applicable law.

14.9 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which when taken together shall constitute one and the same

document. For purposes of this Agreement, use of a facsimile, e-mail, or other electronic medium shall have the same force and effect as an original signature.

14.10 Tax and Renewable Energy Credits. All benefits and incentives that result from Grantee's development and use of the Property for solar energy purposes shall accrue to the benefit of Grantee, including but not limited to any portfolio energy credits, rebates in lieu of portfolio energy credits, any reductions or credits in taxes and/or assessments, rebates, financing, federal, state and local grants, reductions in fees, participation in federal, state or local special programs or tax districts, and special programs of public utilities. If under applicable law, the holder of a leasehold or easement estate becomes ineligible for any tax credit, renewable energy credit or rebate, environmental credit or any other benefit or incentive for renewable energy established by any local, state or federal government, or any public utility, then, at Grantee's option, Owner and Grantee shall exercise good faith and negotiate an amendment to this Agreement or replace it with a different instrument so as to convert Grantee's interest in the Property to a substantially similar interest that makes Grantee eligible for such credit, benefit, rebate, or incentive.

14.11 No Partnership. Nothing contained in this Agreement shall be construed to create an association, joint venture, trust or partnership covenant, obligation or liability on or with regard to any one or more Parties in this Agreement.

14.12 [reserved]

14.13: Public Officials. Owner acknowledges that its receipt of monetary and other good and valuable consideration hereunder may represent a conflict of interest if Owner is a government employee or otherwise serves on a governmental entity with decision-making authority (a "**Public Official**") as to any rights Grantee may seek, or as to any obligations that may be imposed upon Grantee in order to develop and/or operate the Project ("**Development Rights**"), and Owner hereby agrees to (1) recuse him/herself from all such decisions related to Grantee's Development Rights unless such recusal is prohibited by law or is not reasonably practicable considering the obligations of such Public Official's position and (2) recuse him/herself from all such decisions related to Grantee's Development Rights if such recusal is required by law. If Owner is not required pursuant to (1) or (2) above to recuse him/herself from a decision related to Grantee's Development Rights, Owner shall, in advance of any vote or other official action on the Development Rights, disclose the existence of this Agreement (but not the financial terms therein) at an open meeting of the relevant governmental entity Owner serves on as a Public Official. Additionally, if Owner is a Public Official and any of Owner's spouse, child or other dependent has a financial interest in the Project, Owner shall disclose such relationship (but not the financial terms thereof) at an open meeting of the relevant governmental entity Owner serves on as a Public Official, prior to participation in any decision related to Grantee's Development Rights.

14.13 Abstract of Title. Within fifteen (15) days after receipt of written request from Grantee, Owner shall, at Grantee's cost make available to Grantee, its current complete Abstract of Title of the Property (and Grantee may make a complete copy of such Abstract of Title), if Owner has the Abstract of Title.

14.14 Minerals. Owner makes the following agreements concerning the exercise of its right and other parties' rights to the mineral estate underlying the Property:

(a) Owner will notify Grantee within twenty-four (24) hours of receiving any notices of any proposed oil, gas, or mineral operations ("**Proposed Mineral Operations**") on the Property that are received by Owner pursuant to any laws or regulations relating to the protection of the rights of a surface landowner, specifically including, without limitation, the Oklahoma Surface Damage Act, 52 Okla. Stat. § 318.2, et seq., the Oklahoma Seismic Exploration Regulation Act, 52 Okla. Stat. § 318.21, et seq.,

and the Leasing of Osage Reservation Lands for Oil and Gas Mining 25 CFR 226 (collectively, the “Surface Rights Acts”), together with a copy of any such notice received.

(b) Owner shall provide Grantee with reasonable advance notice of any impending proceeding or meeting related to any Proposed Mineral Operations.

(c) In the event of any negotiations by Owner for any claim for surface damages relating to Proposed Mineral Operations, Owner agrees to include the claim for surface damages remitted to Owner by Grantee as a consequence of the Proposed Mineral Operations if Grantee is not permitted to independently submit its claim for surface damages (“Grantee’s Surface Damages”).

(d) Grantee shall have the right, in its sole discretion, to contest by legal proceedings (which may be brought in the name(s) of Grantee where permitted, or in the name of Owner if Grantee is not permitted to bring such contest in its own name), the Proposed Mineral Operations (to the extent such operations are to occur on the Property) or the amount of any of any Grantee Surface Damages relating to such Proposed Mineral Operations, provided, however, Owner and Grantee shall use commercially reasonable efforts to cooperate with each other in any such contest(s) in a manner that is consistent with the provisions of this Agreement.

(e) Owner will cooperate (including execution, delivery and recording of accommodation agreements with mineral owners or mineral lessees) with any requests from Grantee to designate or reserve portions of the Property for mineral activities in connection with accommodation agreements with mineral owners or mineral lessees.

(f) This Agreement does not include the lease or grant of any subsurface water or mineral rights. Nothing contained in this Agreement shall limit Owner’s rights to directionally drill under any portion of the Property without using the surface of the Property; provided that any directional drilling below the Property must be more than one hundred fifty (150) feet below the surface of the Property or such drilling activity must otherwise be at a sufficient depth below the surface of the Property so that such drilling activity does not disturb the subjacent lateral support of the surface of the Property containing the Solar Facilities. Grantee shall have the right of subjacent and lateral support for the Property (to prevent subsidence); Owner shall not take any action nor permit any third party over which Owner has control to take any action on or under the Property, or on or under Adjacent Property, which would interfere with Grantee’s foregoing right to subjacent and lateral support.

14.15 Records. Grantee will comply with all Oklahoma law requirements regarding Grantee’s books and records.

14.16 Excavation and Indemnification. Grantee shall comply with state One-Call law requiring a party engaged in an excavation to call a notification center at least 2 working days (48 hours excluding weekends and holidays) before digging, if Grantee is planning on digging 16 inches or deeper using mechanical equipment. At the request of Owner, Grantee shall serve upon Owner the ticket number of the notification. Grantee shall protect, defend and indemnify Owner, its agents, servants, employees, officers, directors, and co-owners of the Property from and against all claims, demands, and causes of action of every kind and character for failure to comply with state One-Call laws, without limit and without regard to the cause or causes thereof, arising from or by reason of this grant or Grantee’s activities or conduct on the Property and the usage of the Property. This indemnity applies to bodily injury, death or damage to property. Grantee’s indemnity under this paragraph shall be without regard to and without any right to contribution from any insurance maintained by Owner.

14.17 Partial Releases. To the extent that entire individual parcels of land making up portions of the Property, or majority portions of such individual parcels of land, are not utilized in the hosting of Solar Facilities or otherwise act to reasonably support the Project in the form of Project access, setbacks required by Grantee or governmental authority, or other reasonable Project support considerations (such non-participating, non-supporting parcels and partial parcels of land, as the case may be, herein referred to as the "Fully Non-Participating Land"), then Grantee will cooperate with Owner within six (6) months after the Operations Date and written notice by Owner to release such Fully Non-Participating Land from this Agreement in its entirety. Grantee will cooperate with Owner to execute any documents reasonably requested by Owner to effectuate a release of such Fully Non-Participating Land, including, but not limited to, recording such release in county land records and executing an amendment of this Agreement and any recorded memorandum of this Agreement to exclude such Fully Non-Participating Land.

[Signatures on Following Page]

IN WITNESS WHEREOF, Owner and Grantee, acting through their duly authorized representatives, have executed this Agreement with the intent that it be effective as of the Effective Date, and certify that they have read, understand and agree to the terms and conditions of this Agreement.

OWNER:

GREEN BANDIT, LLC

By: Page Montgomery Hartley
Name: Pagee Montgomery Hartley
Title: Manager, Green Bandit, LLC

GRANTEE:

INVENERGY SOLAR PROJECT
DEVELOPMENT LLC,
a Delaware limited liability company

By: James Williams
Name: James Williams
Title: Vice President

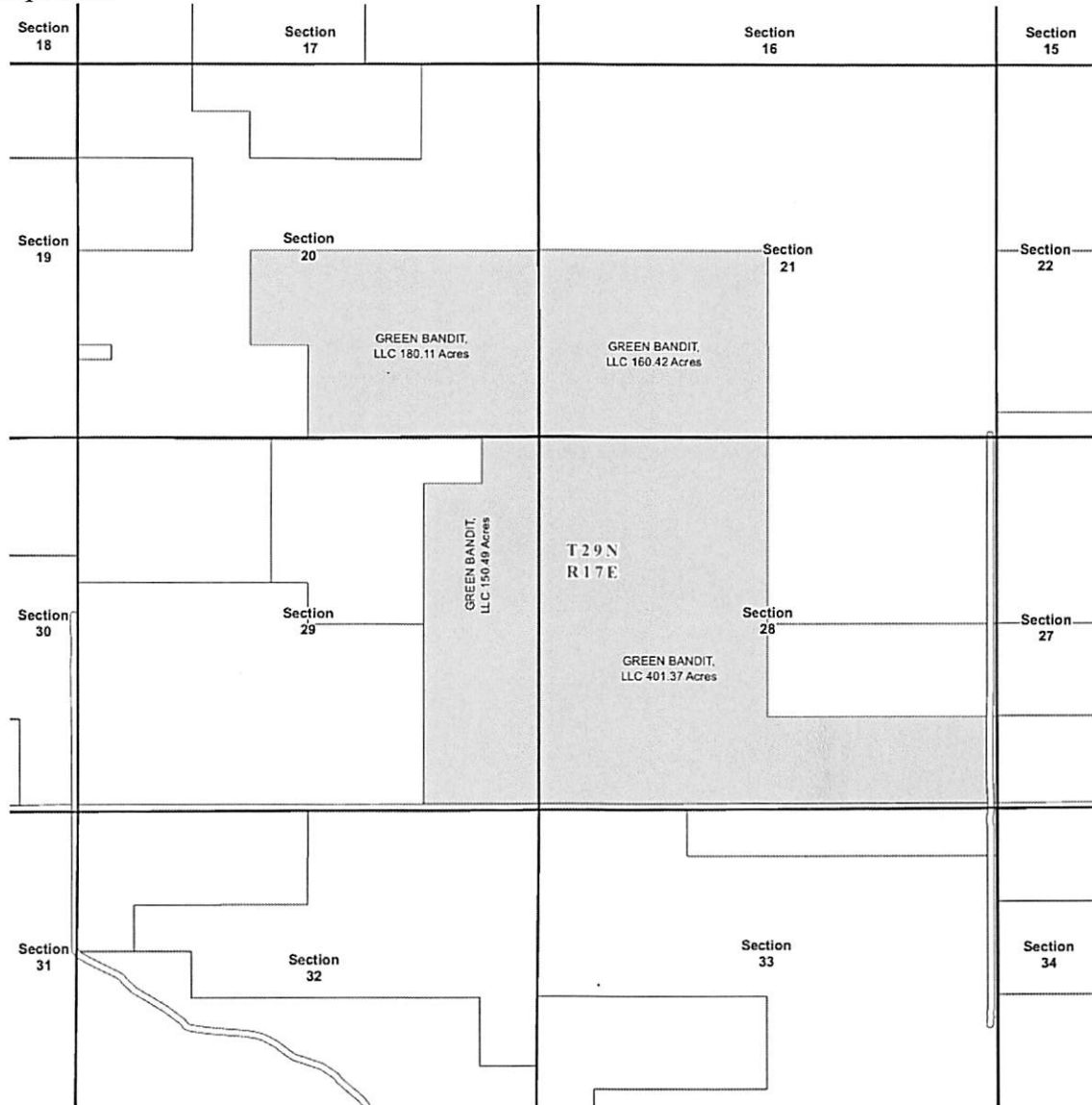
EXHIBIT A
DESCRIPTION OF THE "PROPERTY"

THE FOLLOWING REAL PROPERTY LOCATED IN THE COUNTY OF NOWATA, STATE OF OKLAHOMA:

Tract 1: The SE/4 and the E/2 of NE/4 of SW/4 of Section 20; the SW/4 of Section 21; the S/2 of SE/4, the NW/4, and the SW/4 of Section 28; the E/2 of NE/4 of NE/4, SW/4 of NE/4 of NE/4, SE/4 of NE/4, NE/4 of SE/4 and the SE/4 of SE/4 of Section 29; all in Township 29 North, Range 17 East of the Indian Meridian.

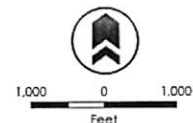
EXHIBIT A-1
Depiction of the Easement Area

The attached map is for ease of reference only. At all times, the Legal Description in Exhibit A shall prevail.



Legend

- Township/Range Boundary
 - Section Line
 - Tax Parcel
 - Road Classification
 - County Road
- Hartley Property**
- Property-892 Acres



Site Plan: Hartley Property

Nowata County, Oklahoma

Rev. 00
November 13, 2018

Invenergy

EXHIBIT B
Payment Terms

In consideration for the rights provided to Grantee under the Agreement, Grantee agrees to make payments to Owner as follows, whether the same relates to activities undertaken by Grantee pursuant to this Agreement or in connection with a Transfer (as defined in Section 10.2 of the Agreement) or in connection with rights granted to a transmitting public utility (as set forth in Section 9.9):

1. Development Term Fees. Beginning on the Effective Date and ending upon the start of the Construction Term, Grantee shall pay Owner an annual fee of \$4.00/acre (the “**Development Term Fee**”). Payment of the Development Term Fee shall be made annually in advance with the first payment due on or before sixty (60) days following the Effective Date and each subsequent payment shall be due on or before each anniversary of the Effective Date, as applicable.

2. Construction Term Fees. Upon commencement of the Construction Term, Grantee shall pay owner an annual fee of TWO HUNDRED DOLLARS (\$200.00) times the number of acres to be used for construction (subject to Section 4 of Exhibit C of this Agreement) less any Crop Damage Compensation received (the “**Construction Term Fee**”). Payment of the Construction Term Fee shall be made annually in advance with the first payment due on or before sixty (60) days following the commencement of construction and each subsequent payment shall be due on or before each anniversary of the Effective Date, as applicable.

3. Operating Fees. Beginning on the Operations Date and ending on the date on which Grantee ceases to operate the Solar Generating Equipment on the Property, Grantee shall pay to Owner the below amounts annually (collectively “**Operating Fees**”). Notwithstanding the above, Owner acknowledges that Grantee may build the Project in phases and all of the Property may not be included in the initial phase or subsequent phase(s).

(a) Fixed Fee. Grantee shall annually pay to Owner a fixed fee equal to the greater of (i) FOUR HUNDRED DOLLARS (\$400.00) times the number of acres of the “Developed Property” then subject to the Lease at the Operations Date, or (ii) \$267,000.00 (which such amount represents the Fixed Fee payable if Grantee hypothetically developed 75% of the Property originally encumbered by this Agreement) (such amount, the “**Fixed Fee**”). The “**Developed Property**” shall be that portion of the Property on which Solar Facilities is installed on or after the Operations Date for any calendar year. Within ninety (90) days of the Operations Date, Grantee shall have a licensed surveyor complete a survey of the Developed Property and calculate the total acreage of such Developed Property as of such date.

(b) Payments During the Second Extended Term. If Grantee extends this Agreement for the Second Extended Term in accordance with Section 3.4, then the Parties shall at least one (1) year prior to the Expiration of the First Extended Term negotiate in good faith the amount of Operating Fees to be paid during the Second Extended Term to reflect the then current fair market values (which shall be at least equal to the minimum \$267,000.00 fee described in Section 3(a) above), provided however, that the new Fixed Fee applicable during any Extended Term shall not go into effect until the First Extended Term has ended. The parties shall meet no earlier than three (3) years and no later than one hundred eighty (180) days prior to the expiration date of the First Extended Term to attempt to agree on such fair market values after such meeting. If the parties are unable to reach an agreement as to the fair market values, then such fair market values for the Second Extended Term shall be determined by an independent solar power consultant reasonably acceptable to both Grantee and Owner, such consultant shall have at least five (5) years’ experience with solar power projects constructed in the United States, including experience gained as a landowner, accountant, attorney, or similar professional who has worked on solar power

projects, not have been an employee of or consultant to either Party, and not have any financial interest in or derived from the Project or the Property (a "Consultant"). The Consultant shall complete his determination prior to the expiration date of the First Extended Term. The Parties shall bear the Consultant's costs equally. If the Consultant's determination of the fair market value for the Fixed Fee is less than \$267,000.00 per year, then the Fixed Fee for the first year of the Second Extended Term shall be deemed to be an amount equal to \$267,000.00 plus the GDP Adjustment applicable to each prior lease year during the Term if the Fixed Fee determined pursuant to Section 3(a) above was \$267,000.00 as of the Operations Date, and the Fixed Fee shall be adjusted by the GDP Adjustment each year thereafter until expiration of the Term.

(c) Payment of Operating Fees. For the first payment of Operating Fees, Grantee shall receive a credit for any Development Term Fees and Construction Term Fees paid equal to the proportion of such Development Term Fee and Construction Term Fee that is applicable for time periods occurring after the Operations Date. The payment of the Fixed Fee each calendar year shall be made in semi-annual installments, the first semi-annual payment shall be due on or before sixty (60) days following the Operations Date and each subsequent semi-annual installment payment shall be due on or before that date which is 6 months following the Operations Date and each subsequent date which is 6 months thereafter. Owner shall have the right to receive, upon written request, a statement from Grantee showing the computational basis for Owner's semi-annual payments.

(d) Commencing on the first anniversary of the Operations Date, such Operating Fees shall be adjusted upwards by the greater of two percent (2%) per year on a compounded basis or by the percentage change, if any, in the GDPIPD for the preceding available four quarters (such annual adjustment, the "GDP Adjustment"). "GDPIPD" means the gross domestic product implicit price deflator, as computed and published quarterly by the U.S. Department of Commerce (Index 2000=100), as presented and revised from time to time in the "Gross Domestic Product: [applicable quarter] Quarter 'Final' Press Release" released periodically by the Bureau of Economic Analysis. In the event that Operating Fees are increased for any other owner involved with the Project in excess of those described herein at any time, Owner shall also receive the benefit of such increase.

(e) Notwithstanding anything in this Agreement to the contrary, if at any time after the Development Term Date, Grantee or any affiliate of Grantee enters into an easement or lease agreement (excluding fee purchases of real property) with a third party owner of other real property in which the solar facility situated on a third party owner's real property ties directly or would tie directly into the same substation, or supplies energy under the same power purchase agreement, as the Solar Facilities situated on the Property, providing for any amounts of consideration higher than set forth in this Agreement, Grantee and Owner shall enter into an amendment to this Agreement to conform, as applicable, the rate, amount or percentage provided in this Agreement to the rate, amount or percentage provided in the third party agreement. If a category of rent is being adjusted by amendment to this Agreement, the amendment shall conform all of the rates, amounts or percentages for specific time periods in this Agreement to all of the rates, amounts or percentages provided in the third-party agreement with respect to that rent category.

4. Late Payment Penalty. If Grantee fails to make any payment to Owner required of it hereunder when due, interest shall accrue on the overdue amount, from the date of expiration of Grantee's cure period until the date paid, at a rate equal to the sum of: (i) two percent (2%) per annum; plus, (ii) the prime lending rate as from time to time may be published by The Wall Street Journal under the "Money Rates" section; provided, that in no event shall such total interest exceed the maximum rate permitted by law.

5. IRS Form W-9. Notwithstanding anything in this Agreement to the contrary, Grantee shall have no obligation to make any payment to Owner otherwise required under this Agreement until Owner has returned to Grantee a completed Internal Revenue Service Form W-9, such W-9 form to either (i) have been provided by Grantee to Owner prior to execution of this Agreement or (ii) be provided by Grantee to Owner promptly upon execution of this Agreement.

6. Payment Instructions. Unless otherwise indicated in the table below, all payments issued hereunder will be paid to Owner, and if Owner is comprised of more than one person or entity, such payments will be issued by a single check payable to all such persons or entities. If Owner elects to have payments made as set forth in the table below, Owner and each person or entity holding record title to the Property hereby acknowledges and agrees that all payments are legally permitted to be made as set forth in the table below and that no other party shall have any right to such payments or to contest the payments and allocations as set forth below. Each person receiving payment pursuant to the table below hereunder agrees to fully indemnify, defend and hold harmless Grantee against claims and liability by any third party in connection with its payments hereunder to the person/entities set forth herein. Check one below:

☒ A single check should be issued payable to all persons/entities comprising Owner.

☐ Separate checks should be issued to each Owner as set forth below:

Owner:	Green Bandit, LLC
Payment Allocation:	100%

7. Crop Compensation. Grantee shall pay Owner one-time compensation for any and all portions of the Property where permanent Solar Facilities are constructed that are either taken out of commercial crop production for a season because of the construction of the Solar Facilities, or that are removed or damaged as a direct result of Grantee's construction of the Solar Facilities on the Property ("**Crop Damage Compensation**"). Portions of the Property shall be deemed to have been taken out of commercial crop production only if the Owner was actually farming such portions of the Property immediately prior to Grantee's commencing construction of the Solar Facilities on the Property. The Crop Damage Compensation shall be deemed full compensation for any losses of income, rent, business opportunities, profits or other losses arising out of such Grantee construction. Crop Damage Compensation shall be equal to the fair market value of the crops that are damaged per season, but a minimum of the following amounts determined by multiplying the total acreage of damaged cultivated crops, specialty crops, pasture or hay on the Property for which Grantee is responsible pursuant to this Agreement by the following amounts: (i) hay at Two Hundred Sixty and no/100 Dollars (\$260.00) per acre, (ii) corn at Six Hundred and no/100 Dollars (\$600.00) per acre, (iii) oats at One Hundred Seventy-Five and no/100 Dollars (\$175.00) per acre, (iv) pasture at Fifty-Five and no/100 Dollars (\$55.00) per acre, (v) soybeans at Six Hundred and no/100 Dollars (\$600.00) per acre, (vi) wheat at Six Hundred and no/100 Dollars (\$600.00) per acre, and (vii) cotton at Six Hundred and no/100 Dollars (\$600) per acre. If less than one acre of Owner's cultivated crops, pasture or hay on the Property is damaged by Grantee's activities on the Property, the applicable dollar amount per acre shall be reduced proportionally. The Parties shall attempt, in good faith, to agree upon the extent of damage and amount of acreage affected. If the Parties cannot agree, the Parties shall have the area measured and the extent of damage assessed by an impartial party chosen by mutual agreement of the Parties, such as a crop insurance adjuster. If Grantee's Site Activities on the Property damage or destroy any of Owner's pastureland, then Grantee will reseed the affected areas, at Grantee's sole cost, with grasses and/or natural vegetation in accordance with the reasonable and customary standards

in the area for restoring and reseeding pastureland and reimburse Owner the Crop Damage Compensation for any loss of use and productivity of the affected Property caused by Grantee or any Grantee Related Person (as defined in Section 7) (the "**Pasture Compensation and Restoration**").

8. Legal Fee Reimbursement. Provided that the Parties execute this Agreement, Grantee shall reimburse Owner for up to One Thousand and 00/100 Dollars (\$1,000.00) of legal fees incurred by Owner in connection with this Agreement between the Effective Date and the commercial operations date of the Project.

EXHIBIT C
Special Conditions

1. **Construction and Operations Notification.** Grantee shall provide Owner with written notice thirty (30) days prior to (the "Construction Notice Period") Grantee commencing construction of the Solar Facilities on the Property, such notice shall provide Owner with a site plan indicating the approximate proposed location of the Solar Generating Equipment and access roads; however Grantee may commence construction prior to the expiration of the Construction Notice Period with Owner's consent. Grantee shall provide written notice to Owner no later than 30 days after the Operations Date.
2. **Proof of Insurance.** Upon request by Owner, Grantee shall provide proof of insurance of any Grantee Related Person on the Property.
3. **Removal Bond.** On or by the tenth (10th) anniversary of the Operations Date, Grantee shall obtain and deliver to Owner a letter of credit, or similar financial assurance, in form and substance reasonably satisfactory to Owner securing performance of Grantee's obligation to remove the Solar Facilities located on the Property (the "Removal Bond"). The Removal Bond shall be equal to the estimated amount, if any, by which the cost of removing the Solar Facilities exceeds the salvage value of such Solar Facilities (the "Net Removal Costs"). To the extent that the Net Removal Costs are zero (or negative), a Removal Bond shall not be required on the part of the Grantee, provided, however that Grantee shall re-evaluate the need for a Removal Bond at least annually after the tenth (10th) anniversary of the Operations Date. Grantee shall not be required to deliver such Removal Bond to Owner if Grantee (i) is in the process of repowering or otherwise redeveloping the power generating units on the Property with new power generating units (or commits in writing with notice to Owner to do so within two (2) years after the tenth (10th) anniversary of the Operations Date), or (ii) has delivered such financial assurance in connection with the permitting of the Project or any other portion of the Solar Facilities for Grantee's Solar Generating Equipment. Once in place, Grantee shall keep such Removal Bond, or similar financial assurance, in force throughout the remainder of the Term. The Net Removal Costs shall be determined by the Grantee acting in good faith. If any requirement or right provided in this section contradicts or opposes any state or local laws, such state or local laws shall take precedence over this provision and such requirement or right shall be invalidated.
4. **Fence Construction.** Should Grantee construct fences and gates across access roads on the Property, Owner shall be furnished with keys or other ability to open and close such gates, except the to extent that gates provide entrance solely to Developed Property. When installing a gate within Owner's existing fence, Grantee agrees to make such fence cuts, braces, and repairs that will be permanent and remain functional for the remaining life of the fences of which they are part and become incorporated within, so that the fences are at least as of as a high a quality as they were prior to Grantee's interference therewith. Cuts shall be properly braced with H braces, kickers and corners set in advance in order to prevent sagging or "slackening" of wires. Should such cuts, braces, or repairs as made by Grantee become weakened or prove to be insecure or inadequate by reason of improper installation or fabrication and occur over and above normal wear, tear and use, Owner shall notify Grantee in writing. The Property is comprised of a series of fenced pastures used primarily for grazing cattle. In an effort to minimize the impact on the Property not being utilized by Grantee during construction of the Project, Grantee shall either (i) construct a temporary fence around the area of construction activities and allow the Owner or Owner's tenant to continue using the remaining portion of such pasture, or (ii) send the Owner written notice of its intent to use the entire pasture for Grantee's construction activities (whether or not the entire pasture is so used), and upon receipt of such notice, Owner shall use commercially reasonable efforts to cease the current use of such pasture within 30 days thereafter. In the event

Grantee elects (ii) in the preceding sentence, then the entire pasture shall be deemed to be used for construction activity for purposes of determining the Construction Term Fee until such time as the actual area of construction activities within such pasture is appropriately fenced and Grantee has provided Owner with written notice of the same. Grantee shall make adequate repairs or replacements of any insecure or inadequate fencing, bracing, or gates within thirty (30) days of receiving notice thereof from Owner, weather permitting. Any perimeter gates and fences, or other similar permanent improvements installed by Grantee as discussed in this paragraph will become the property of Owner after installed and shall remain as such upon request by Owner regardless of the status of this Agreement.

5. **Soil Erosion.** Promptly after completion of construction, maintenance or removal operations in connection with this Agreement, Grantee shall maintain good stewardship of the Property by restoring and re-seeding all surfaces with native or improved grasses with mulch and commercial type time-release fertilizer to ensure a good stand in order to prevent soil erosion. In addition, Grantee shall use commercially reasonable efforts during the term of this Agreement to control soil erosion around the Solar Facilities located on the Property. Grantee shall re-plant native grass seed, but not crops or other types of vegetation, on any unimproved portion of the Property.
6. **Prohibited Activities.** Neither Grantee nor any of its agents or employees shall be allowed to bring any firearms, alcohol, illegal drugs or animals, domesticated or wild onto the Property. Grantee shall use commercially reasonable efforts to ensure that none of its agents or employees are under the influence of alcohol or illegal drugs or engaging in any other illegal activity while on the Property and shall use commercially reasonable efforts to ensure that no agents or employees engage in any hunting or fishing activities while on the Property. No flags, banners, or other decorative items of any nature shall be allowed to be displayed at or upon the lands other than the Oklahoma and the United States flags. This shall not apply to company decals or brand identification on vehicles or other equipment. There shall be no removal of any item of any kind or nature from the lands, specifically including but not limited to any item of archeological interest, any growing flower, plant or vegetation (such as grasses, shrubs, cacti, wildflowers and any fruit or vegetable or seeds of any such vegetation which may grow on the lands), animals or animal carcasses or bone, rocks, wood or any other resource or item which may be located thereon. However, this provision shall not preclude the removal of any products of waste from the lands, if necessary, or the temporary relocation of dirt, rock and other similar materials during activities which are authorized per Grantee's rights under this Agreement. Grantee shall expressly notify all of its agents, employees, contractors and other personnel of all specifically-prohibited activities, and upon request of Owner, appropriate notices of such prohibition will be placed at points of entry to the Property.
7. **Living Quarters.** Grantee shall have no right, without the express written permission of Owner, to allow, permit, or authorize its contractors, employees, or agents or affiliates, to camp or reside on the Property overnight, in any manner, nor establish any living quarters on the Property, except for temporary use in the case of inclement weather or emergency situations for so long as such weather conditions or emergency situations continue to pose an immediate threat to the health or safety of any person.
8. **Right of First Refusal.** Owner hereby grants to Grantee a one-time right of first refusal ("ROFR") for additional solar leases and/or solar easements upon any property located within the same county as the Property now or hereafter owned by Owner (the "**ROFR Property**"), subject to the following terms and conditions:
 - i) The ROFR is only available to the extent Owner intends to lease, convey an easement or develop such property for commercial solar energy purposes (which shall have the same meaning as the definition of Site Activities) ("**Solar Purpose**"), but excluding the installation

of solar panels for single-family residential use which shall not be a Solar Purpose triggering the ROFR.

- ii) Should Owner desire to lease the ROFR Property for a Solar Purpose (or any part of it) to a party other than Grantee or its affiliates, on the receipt of a bona fide offer which Owner desires to accept, then, provided that no material default in the performance of Grantee's obligations under this Agreement shall have occurred and remain uncured, Owner must first notify Grantee in writing (the "**Offer Notice**") of the offer to lease or take an easement of the ROFR Property (or any part of it) (the ROFR Property covered by the offer being called the "**Offered Property**") and the name of the proposed transferee and the terms and conditions of the proposed transfer (the "**Transaction Document**"), whereupon Grantee has the first and prior exclusive right and option to lease all of the Offered Property for the consideration and on the terms equivalent to the consideration and terms stated in such Transaction Document, which option will continue for a period which will expire sixty (60) days following receipt of the Offer Notice. Such option may be exercised by Grantee, or an affiliate designee/assignee of Grantee, by written notice (the "**Exercise Notice**") in substantially the form of the Transaction Document, delivered to Owner, and the lease must be in equivalent terms of the bona fide offer. Such lease must be executed not later than sixty (60) days after Grantee's delivery of the Exercise Notice or such later date as may be approved by Owner. If Grantee does not elect to exercise the option within the deadline for doing so, then such ROFR shall expire with respect to the Offered Property. For purposes of this Section 8 of Exhibit C, the term "lease" shall mean a lease and/or an easement for a Solar Purpose or Owner's development, co-development or participation in a Solar Purpose with respect to the ROFR Property. For the avoidance of doubt, Owner shall not enter into, nor develop, co-develop, acquire or otherwise cause the ROFR Property to be used as a Solar Purpose without first offering Grantee the right to enter in to a lease or easement agreement for that same property using the procedure described above.
- iii) The ROFR Property includes the following:

W/2 of the SW/4 of Section 33, Township 26 North, Range 16 East of the Indian Meridian, Nowata County, Oklahoma.

ROFR Property shall also include any Property released from this Agreement by Grantee pursuant to Section 14.17 of the Agreement. Upon such release, Owner agrees to grant a ROFR with respect to such Property and such ROFR shall contain the same terms and conditions as this Section 8 of Exhibit C.

- iv) The term of the ROFR shall extend for a period commencing on the Effective Date and ending on the earlier of (a) the exercise or termination of the ROFR pursuant to this Section 8 of Exhibit C with respect to any Offered Property, (b) Owner's sale or conveyance of all or any portion of the ROFR Property to a third-party purchaser (unless such purchaser is acquiring the all or a portion of ROFR Property solely for use as a Solar Purpose and Owner has actual knowledge of such intention) with respect to such ROFR Property sold, or (c) upon expiration or earlier termination of this Agreement with respect to all of the ROFR Property.
- v) This ROFR is a private right granted by Owner to Grantee, and such ROFR shall not be a covenant running with the land.

- vi) All notices given hereunder shall be provided in a manner proscribed in Section 14.5 of the Agreement.

EXHIBIT D
Form of Recording Memorandum

After recording return to:
Invenergy Solar Project Development LLC
c/o Invenergy LLC
One South Wacker Drive
Suite 1800
Chicago, Illinois 60606
ATTN: Land Administration

THIS SPACE FOR RECORDERS USE ONLY

MEMORANDUM OF SOLAR LEASE AND EASEMENT AGREEMENT

THIS MEMORANDUM OF SOLAR LEASE AND EASEMENT AGREEMENT (this "**Memorandum**"), is made, dated and effective as of November __, 2018 (the "**Effective Date**"), between Green Bandit, LLC, an Oklahoma limited liability company (together with its successors, assigns and heirs, "**Owner**"), whose address is P O Box 1004, Vinita, OK 74301, and INVENERGY SOLAR PROJECT DEVELOPMENT LLC a Delaware limited liability company (together with its transferees, successors and assigns, "**Grantee**"), whose address is One South Wacker Drive, Suite 1800, Chicago, IL 60606, with regards to the following:

1. Owner and Grantee did enter into that certain SOLAR LEASE AND EASEMENT AGREEMENT dated _____ (the "**Agreement**"), which affects the real property located in Nowata County, Oklahoma, as more particularly described in Exhibit A attached hereto (the "**Property**"). Capitalized terms used and not defined herein have the meaning given the same in the Agreement.

2. The Agreement grants, and Owner hereby grants, Grantee, among other things, (a) the exclusive right to develop and use the Property, including, without limitation, for converting solar energy into electrical energy and collecting and transmitting the electrical energy so converted; (b) an exclusive easement to capture, use and convert the unobstructed solar flux over and across the Property from all angles and from sunrise to sunset at the Property during each day of the Term; and (c) an exclusive easement for electromagnetic, audio, visual, glare, electrical or radio interference attributable to the Solar Facilities or Site Activities. The Agreement contains, among other things, certain Owner and third party use and development restrictions on the Property.

3. The Agreement shall be for an initial term of Five (5) years, an extended term of Twenty-five (25) years and a second extended term of Twenty-five (25) years if the terms and conditions of the Agreement are met.

4. This Memorandum does not supersede, modify, amend or otherwise change the terms, conditions or covenants of the Agreement, and Owner and Grantee executed and are recording this Memorandum for the purposes set forth herein and for providing constructive notice of the Agreement and Grantee's rights thereunder and hereunder. The terms, conditions and covenants of the Agreement are set forth at length in the Agreement and are incorporated herein by reference as though fully set forth herein. This Memorandum shall not, in any manner or form whatsoever, alter, modify or vary the terms, covenants and conditions of the Agreement.

5. This Memorandum shall also bind and benefit, as the case may be, the heirs, legal representatives, assigns and successors of the respective parties hereto, and all covenants, conditions and agreements contained herein shall be construed as covenants running with the land to the extent consistent with applicable law.

6. Owner shall have no ownership, lien, security or other interest in any Solar Facilities installed on the Property, or any profits derived therefrom, and Grantee may remove any or all Solar Facilities at any time.

7. This Memorandum may be executed in counterparts, each of which shall be deemed an original and all of which when taken together shall constitute one and the same document.

[signature page to follow]

IN WITNESS WHEREOF, the parties have executed this Memorandum to be effective as of the date first written above.

OWNER:

GREEN BANDIT, LLC

By: _____
Name: Pagee Montgomery Hartley
Title: Manager, Green Bandit, LLC

GRANTEE:

INVENERGY SOLAR PROJECT
DEVELOPMENT LLC,
a Delaware limited liability company

By: _____
Name: _____
Title: _____

ACKNOWLEDGMENT OF OWNER

STATE OF OKLAHOMA)
) SS.
COUNTY OF _____)

Personally came before me this ____ day of _____, 2018, _____
who executed the foregoing instrument as Manager of Green Bandit, LLC, and acknowledged the same.

(S E A L)

Name: _____
Notary Public, State of _____
My Commission Expires: _____

ACKNOWLEDGMENT OF GRANTEE

STATE OF ILLINOIS)
) SS.
COUNTY OF COOK)

Personally came before me this ____ day of _____, 201__, _____
who executed the foregoing instrument as Vice President of **Invenergy Solar Project Development LLC**,
and acknowledged the same.

(S E A L)

Name: _____

Notary Public State of Illinois

ATTN: Land Administration